

Inverness Public Utility District

Board Agenda Item Staff Report

Subject:	Resolution 299-2026: Appropriations Limit Override Election (Replacing Resolution 273-2022)
Meeting Date:	May 19, 2026
Date Prepared:	March 30, 2026
Prepared by:	Shelley Redding, General Manager
Attachments:	Resolution 299-2026 DRAFT

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Recommended Action: Adopt and Approve Resolution 299-2026 (replacing Resolution 274-2022) to place the appropriations limit override measure on the ballot at the November 3, 2026, general election

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This resolution replaces Resolution 274-2022 which your Board adopted on July 27, 2022. This resolution conforms to the new requirements for how measures are described on the ballot.

The new wording, to conform with Elections Code Sec. 13119(a) is as follows:

> **"Shall the measure adjusting the appropriations limit for the Inverness Public Utility District pursuant to Article XIIIB of the California Constitution so that for each of the fiscal years 2025/2026 through 2029/2030 the appropriations limit shall include the combined total of all applicable revenue sources be adopted?"**

By way of background, Article XIIIB of the California State Constitution requires your Board to set for each fiscal year the maximum amount of tax proceeds the District is permitted to appropriate. This is pursuant to Prop. 4 (the so-called Gann initiative) adopted by the voters in November 1979.

The IPUD's calculated appropriations limit is substantially smaller than the actual amount of tax proceeds to which the District is entitled pursuant to Prop. 13. In order to keep the difference, we must submit to the District's voters every four years a measure authorizing our appropriations limit to be further adjusted to include the combined total of all applicable revenue sources.

Inverness Public Utility District

RESOLUTION 299-2026

A RESOLUTION OF THE BOARD OF DIRECTORS
OF THE INVERNESS PUBLIC UTILITY DISTRICT
PROPOSING AN ADJUSTMENT IN THE APPROPRIATIONS LIMIT,
ESTABLISHING A DATE FOR ELECTION,
ADOPTING INTENDED BALLOT LANGUAGE,
REQUESTING THE CONSOLIDATION OF SAID ELECTION
WITH ANY OTHER ELECTION CONDUCTED ON THE SAME DATE,
REQUESTING ELECTION SERVICES OF THE REGISTRAR OF VOTERS,
AND DIRECTING THAT REBUTTAL ARGUMENTS MAY BE RECEIVED

WHEREAS, an appropriations limit has been established for and by the Inverness Public Utility District pursuant to Article XIIIB of the California Constitution; and

WHEREAS, it is the determination of the Board of Directors of the Inverness Public Utility District that the appropriations limit for the current and subsequent three fiscal years may be inadequate to meet the needs of the property owners and residents of this District;

NOW, THEREFORE, BE IT RESOLVED that the Board of Directors of the Inverness Public Utility District hereby calls an election to be held on Tuesday, November 3, 2026, at which election the issue to be presented to the voters of the District shall be:

"Shall the measure adjusting the appropriations limit for the Inverness Public Utility District pursuant to Article XIIIB of the California Constitution so that for each of the fiscal years 2026/2027 through 2029/2030 the appropriations limit shall include the combined total of all applicable revenue sources be adopted?"

BE IT FURTHER RESOLVED that the Board of Directors of the Inverness Public Utility District hereby requests that said election be consolidated with the general election to be held on the same date and requests the Registrar of Voters to provide all necessary election services and to canvass the results of said election.

BE IT FURTHER RESOLVED that rebuttals shall be received to ballot arguments.

PASSED AND ADOPTED at a regular meeting of the Board of Directors of the Inverness Public Utility District on the 21st day of April, 2026, by the following vote, to wit:

AYES:

NOES:

ABSTAINING:

ABSENT:

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Kathryn Donohue, President

ATTEST:

_____
Shelley Redding, Clerk of the Board

DRAFT